

SENATE No. 2271

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to natural gas shut-off valves, gate boxes and public safety.

PETITION OF:

NAME:

Paul R. Feeney

DISTRICT/ADDRESS:

Bristol and Norfolk

SENATE No. 2271

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 2271) of Paul R. Feeney for legislation relative to natural gas shut-off valves, gate boxes and public safety. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2123 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to natural gas shut-off valves, gate boxes and public safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 144 of Chapter 164 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by striking out subsection (c) and inserting in place thereof the
3 following subsection:-

4 (c)(1) Upon the undertaking of a significant project on a public way exposing confirmed
5 natural gas infrastructure, and with sufficient notice, a municipality or the commonwealth shall
6 submit written notification of the project to a gas company. The gas company shall survey the
7 project area for the presence of Grade 1 or Grade 2 leaks and set repair and replacement
8 schedules for all known or newly detected Grade 1 or Grade 2 leaks. The gas company shall
9 ensure that any shut off valve in the significant project area has a gate box installed upon it or a
10 reasonable alternative that would otherwise ensure continued public safety and that any critical

valve that has not been inspected and tested within the past 12 months is verified to be operational and accessible. The gas company shall provide the repair and replacement schedule of gas leaks to the municipality or the commonwealth.

(2) Upon the undertaking of any planned project involving excavation for purposes of performing maintenance on or construction involving any gas mains or services by gas company employees, or any blasting work, the gas company shall ensure that its employees first locate and identify and mark all gas gates and valves, and verify that all are cleared, operational and accessible in clear sight at ground level in advance of any excavation; and that said gas gates and valves are left cleared, and operational following any such project.

(3) The gas company shall ensure that any shut off valve in the significant project area has a gate box installed upon it by its employees to ensure continued public safety.

(4) The gas company shall provide the municipality or the commonwealth with written confirmation that the gas gates and valves have been cleared, inspected and tested by its employees and found to be capable of accepting a gate key; and, shall provide the municipality or commonwealth with undated, correct information if the location of gates or valves is determined to have been previously improperly located.

(5) Failure to undertake verification that gas gates and valves have been cleared, and are both operational and accessible prior to the start of and following an excavation, or blasting work, shall be subject to a fine of up to \$10,000. Failure to submit written confirmation of such verification shall be subject to a fine of \$200 per day.